

Costs Decision

Site visit made on 5 August 2026

by **R Lawrence BSc (Hons), PGDip (TP), MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Costs application in relation to Appeal Ref: 6008688

Frith Manor, Lingfield Road, East Grinstead, Surrey RH19 2JW

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Mrs Suzanne Harrison & Mrs Catriona Harrison for a partial award of costs against Tandridge District Council.
 - The appeal was against the refusal of planning permission for development described as "Erection of two storey new detached dwelling. A+ energy efficiency. Exceptional quality. M4(3) disabled living."
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Decision

1. The application for an award of costs is allowed in part, in the terms set out below.

Reasons

2. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance (PPG) advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.

Highway safety (reason 3)

3. The applicants contend that the Council acted unreasonably in maintaining reason 3 after the Highway Authority had withdrawn its objection and by only withdrawing that reason at appeal stage. The PPG identifies as potentially unreasonable the persistence of objections or reasons for refusal which are unsupported by evidence. In this case, although the Council was aware before issuing its decision that the Highway Authority no longer objected to the proposal, it retained the highway safety reason for refusal and ultimately did not defend it at appeal, I therefore find the Council's behaviour in relation to refusal reason 3, unreasonable.
4. Whilst the visibility evidence relied upon by the applicants had already been produced and therefore did not arise from that behaviour, the applicants were nevertheless required to prepare appeal submissions addressing a reason for refusal that was subsequently withdrawn. I therefore find that the Council's behaviour was unreasonable and resulted in a limited amount of unnecessary expense, justifying a partial award of costs.

SPA (reason 4)

5. The applicants contend that the Council acted unreasonably in refusing permission on Ashdown Forest SPA grounds, including by not undertaking an Appropriate Assessment and by failing to pursue mitigation measures referred to in correspondence from Natural England. However, it is not necessary to resolve the dispute between the parties regarding the precise Habitats Regulations process followed by the Council. The relevant question for the purposes of this costs

application is whether the Council behaved unreasonably in maintaining and defending Reason 4.

6. In my appeal decision, I concluded that the proposed mitigation was not secured with sufficient certainty to conclude that the integrity of the SPA would be preserved. Although the applicants subsequently submitted an executed Unilateral Undertaking, I found that it did not overcome those concerns. In particular, no specific receiving site had been identified for the uplift contribution route and no capacity had been secured at the Imberhorne Lane SANG.
7. Whilst Natural England identified a potential mitigation strategy, the existence of a potential mechanism is not the same as mitigation secured with the degree of certainty required by the Habitats Regulations. The identification of a potential uplift contribution mechanism did not require the Council to identify and secure a receiving site on the applicants' behalf. The fact that mitigation may potentially have been capable of being secured through a different mechanism does not demonstrate that the Council acted unreasonably in maintaining reason 4 on the basis of the mitigation package before it.
8. The relevant question is whether adequate mitigation had been secured. For the reasons set out in my appeal decision, I found that it had not. Consequently, notwithstanding the applicants' criticisms of the Council's approach, I am satisfied that the Council had a reasonable evidential basis for maintaining and defending Reason 4. I therefore find that unreasonable behaviour resulting in unnecessary or wasted expense has not been demonstrated in respect of this reason for refusal.

Conclusion

9. I therefore conclude that a partial award of costs is justified in respect of the additional appeal work arising from reason 3 only. No award of costs is justified in respect of reason 4.

Costs Order

10. In exercise of the powers under section 250(5) of the Local Government Act 1972 and Schedule 6 of the Town and Country Planning Act 1990 as amended, and all other enabling powers in that behalf, IT IS HEREBY ORDERED that Tandridge District Council shall pay to Mrs Suzanne Harrison & Mrs Catriona Harrison, the costs of the appeal proceedings described in the heading of this decision limited to those costs incurred in relation to limited to those costs incurred in relation to the additional appeal work required to address reason for refusal 3 after the Highway Authority's objection had been withdrawn; such costs to be assessed in the Senior Courts Costs Office if not agreed.
11. The applicant is now invited to submit to Tandridge District Council, to whom a copy of this decision has been sent, details of those costs with a view to reaching agreement as to the amount.

R. Lawrence

INSPECTOR